

Tentative Rulings
August 17, 2026
Department 42

Tentative Rulings for Guardianship cases can be found in the link titled, “Department Guardianships -Tentative Rulings.”

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time. The access code is 248 435 59302. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to speaking with the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

10:00 a.m. – Special Set Law & Motion

SIERRA PACIFIC WAGE AND HOUR CASES

Case Number: 5235

Tentative Ruling on Motion for Clarification or Reconsideration: Defendant Sierra Pacific

Industries moves for reconsideration or clarification of a previous order of this Court. The Ruling issued on August 17, 2023 and the accompanying Order was signed on August 29, 2023. Plaintiffs oppose the motion. The specific relief requested is listed in the Second Amended Notice of Motion and is clarification that:

SPI should review the records and remove all privileged and privacy protected communications and provide a privilege log. Other than the communications that are privileged or privacy-protected and included in a privilege log, SPI must produce all other responsive records.

CCP § 1008(a) requires that a motion for reconsideration be brought within ten days of service of written notice of entry of order. While the Court served the Ruling on both parties, a notice of entry of order was never filed. The motion is timely.

A motion under CCP § 1008(a) must be based upon new or different facts or circumstances. SPI asserts that the new information is that the email search terms ordered by the Court resulted in responsive emails that SPI has determined are irrelevant and also have privacy implications. The Court recalls SPI asserting that the search terms would result in a very large volume of irrelevant records when deciding on the underlying motion in 2023. It is not necessarily a new or different fact or information that a large volume of emails would include the search terms or that privacy rights may be implicated.

However, SPI seeks clarification regarding the meaning of “privileged” as set forth in its Order of August 29, 2023. Specifically, whether or not the Court intended to encompass records containing privacy protected information. To the extent SPI seeks clarification, the Court will issue a ruling on the merits.

SPI is seeking to withhold a number of emails that SPI has determined are irrelevant to the case but contain one or more of the search terms previously ordered by the Court. SPI asserts that these emails are different from the previously produced irrelevant emails because these emails contain privacy protected information, therefore, redaction would be required in order to produce them. It is essentially an undue burden argument because redacting would take time and expense.

In the absence of privilege, the right to discovery in this state is a broad one, to be construed liberally so that parties may ascertain the strength of their case and at trial the truth may be determined. *Williams v. Superior Court* (2017) 3 Cal. 5th 531, 538. However, even relevant, nonprivileged information may be non-discoverable if its discovery would invade an individual’s right to privacy. Unlike privileged information, the protection afforded under privacy interests is qualified, not absolute. “The state Constitution expressly grants Californians a right of privacy. Protection of informational privacy is the provision’s central concern. In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Citations omitted) *Williams v. Superior Court* (2017) 3 Cal. 5th 531, 552.

Because it is not a surprise that a large volume of emails would include the search terms or that privacy rights may be implicated, the Court should have addressed the issue in its ruling in August 2023. The relevant legal authority (cited above) does support the Court's original intent (although not expressly stated in its ruling) that SPI would be allowed to redact the information contained within the emails that would invade an individual's right to privacy.

In the Declaration of Daria Gossett filed on August 10, 2026, counsel asserts that the redaction process for the already produced records took at least 31 hours at an expense of approximately \$12,000. SPI has provided no evidence of the burden or expense that redaction of the documents at issue would require. SPI asserts that 8,500 pages have already been produced, but it is not clear what portion of those records required redaction. SPI has not made a showing that redaction of the emails at issue would pose an undue burden.

The Court notes that Plaintiffs made a number of arguments and requested relief in their Opposition that is outside the scope of this motion. For example, plaintiff argues that defendant has failed to provide sufficient information for the Court to conduct the balancing of competing considerations as required pursuant to *Williams v. Superior Court* (2017) 3 Cal. 5th 531 at 557. Plaintiff is correct but we are not yet at the stage where the Court is confronted with a motion to compel withheld or redacted documents. Should Plaintiff take issue with the production, Plaintiff should follow the standard process of filing a motion if meet and confer efforts do not resolve the issue.

To the extent SPI seeks clarification of the Court's Order, the motion is GRANTED. The Court intended to allow for redaction of information which would invade an individual's right to privacy under the California Constitution. The Court emphasizes that right to privacy under the California Constitution extends to individuals, not business entities or corporations. Examples which have been articulated in case law include: personnel disciplinary matters unrelated to the subject matter of litigation, personal banking information, full social security numbers, religious and political affiliations, sexual relations and medical information/records. SPI is ordered to produce all records that contain the search terms as previously ordered by the Court. Should any privilege or privacy rights be implicated, SPI can redact the information that SPI deems privileged or private, include the basis for the redaction in a privilege log, and produce the redacted email. SPI provided a proposed Order that will be modified to reflect the Court's ruling.

Motion for Decertification: The Court, on its own motion, is continuing the hearing on the Motion for Decertification in order to provide the Court additional time to review the Motion. The Court would propose a hearing date of Monday, August 24, 2026 at 1:30 or 3:30 p.m. If that date does not work for counsel, the Court and counsel can discuss additional dates/times.